



PROVINCIAL EMPLOYEES SOCIAL SECURITY (AMENDMENT) ORDINANCE, 2002

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PROVINCIAL EMPLOYEES' SOCIAL SECURITY (AMENDMENT) ORDINANCE, 2002

ORDINANCE CIV OF 2002

An Ordinance further to amend the Provincial Employees' Social Security Ordinance, 1965)

WHEREAS, it is expedient further to amend the Provincial Employees Social Security Ordinance, 1965 (W.P Ordinance X of 1965) for purposes hereinafter appearing;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No.1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title and, commencement.—(1) This Ordinance may be called the Provincial Employees' Social Security (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Amendment of section 2, West Pakistan Ordinance (X of 1965).—(1) In the Provincial Employees' Social Security Ordinance, 1965 (W.P. Ordinance X of 1965), hereinafter referred to as said Ordinance in section 2,—

(a) for clause (8), the following shall be substituted, namely:—

“(8) ‘employee’ means any person employed, whether directly or through any other person for wages or otherwise to do any skilled or unskilled, supervisory, clerical, manual or other work in, or in connection with the affairs of an industry or establishment, under a contract of service or apprenticeship whether written or oral, expressed or implied but does not

(b) in clause (14) after the word “the”, the words and letter “Federal or a” shall be inserted; and

(c) to clause (25a),—

(i) the words, figures and commas “as on 30th June, 2001,” shall be omitted; and

(ii) Or the words “up to a ‘maximum amount of three hundred fifty rupees” the words “at the fixed rate of two hundred ten rupees” shall be

3. Amendment of section 20, W.P. Ordinance No. X of 1965. In the said Ordinance, in section 20,—

- (a) in the proviso to sub-section (1), for the words “one hundred and twenty rupees per day or three thousand rupees per month” the words “two hundred rupees per day or five thousand rupees per month” shall be
- (b) in sub-section (3), after the word ‘deduct’, the words “his own share of contribution” shall be added.

4. Amendment OF section 20A, W.P. Ordinance No. X of 1965. In the said Ordinance, in section 20A, in sub-section (1) for the words “up to maximum amount of three hundred fifty rupees” the words of two hundred ten rupees” shall be substituted.

5. Amendment of section 22, W.P. Ordinance No. X of 1965. In the said Ordinance, in section 22,—

- (a) in sub-section (4), for the words “the self-assessment scheme remains in operation the words “of two years” shall be substituted; and
- (b) after sub-section (4), the following new subsection (5) shall be added, namely:-

“(5) The number of annual inspections in respect of those establishment which do not opt for Self-Assessment Scheme shall be restricted to only one which shall be notified to the establishments in advance and shall, at the maximum, be restricted to last two years.”

6. Amendment of section 54A, W.P. Ordinance No. X of 1965. In the said Ordinance, in section 54A, for the words “one hundred and twenty rupees per day or three thousand rupees per month” the words “two hundred rupees per day or five thousand rupees per month” shall be substituted.
